

IN THE SENATE

SENATE BILL NO. 1393

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO CHILD CUSTODY; AMENDING SECTION 32-717C, IDAHO CODE, TO REVISE PROVISIONS REGARDING ALLEGATIONS OF ABUSE AND INVESTIGATIONS; AMENDING CHAPTER 7, TITLE 32, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 32-717F, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING TEMPORARY AND EX PARTE ORDERS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 32-717C, Idaho Code, be, and the same is hereby amended to read as follows:

32-717C. ALLEGATIONS OF ABUSE -- INVESTIGATION. (1) When, in any divorce proceeding or upon request for modification of a divorce decree, an proceeding affecting child custody or parenting time, a credible allegation of child abuse or child sexual abuse, neglect, or other criminal acts is made, implicating either party, the court shall order by a written notice and request that an investigation be conducted by the department of health and welfare, or by the appropriate law enforcement agency, if applicable. A final award of custody, parenting time, or visitation may shall not be rendered until a written report on that investigation is received by the court. That investigation shall be conducted by the department within thirty (30) days of the court's notice and request for investigation. The investigating agency shall make reasonable efforts to complete the investigation and submit a written report within forty-two (42) calendar days unless extended by the court upon documented reasonable cause.

(2) If an investigation extends beyond forty-two (42) calendar days, the investigating agency shall provide written status updates to the court every fourteen (14) calendar days. Upon receipt of the investigative report, the court shall review whether continued restriction meets the clear and convincing standard.

(3) During the investigation, the court may issue temporary protective measures only for good cause and in compliance with 32-717F, Idaho Code. Any ex parte or temporary order shall state an expiration date and create no presumption for or against either parent.

(4) Findings regarding allegations shall not be based solely on the opinions or recommendations of guardians ad litem, evaluators, or other court-appointed professionals.

(5) A safety plan is a nonbinding, nonadjudicative, temporary proposal initiated by a governmental entity or government-affiliated actor and shall be considered solely as protective in nature.

1 SECTION 2. That Chapter 7, Title 32, Idaho Code, be, and the same is
2 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
3 ignated as Section 32-717F, Idaho Code, and to read as follows:

4 32-717F. TEMPORARY AND EX PARTE ORDERS. (1) A court may enter a tem-
5 porary custody order, but such order shall not remain in effect longer than
6 forty-nine (49) calendar days, shall create no presumption regarding the
7 child's best interests, and shall not operate as a de facto permanent modi-
8 fication.

9 (2) Any temporary restriction shall expire on the forty-ninth calen-
10 dar day unless continued by written findings supported by clear and convinc-
11 ing evidence. Nothing in this subsection shall require repeated evidentiary
12 hearings where the parties stipulate to continuation or where no party seeks
13 modification.

14 (3) An ex parte order restricting custody, parenting time, or contact
15 may be issued only upon sworn admissible evidence establishing probable
16 cause of imminent physical danger to the child or a parent. Speculation,
17 generalized fear, or uncorroborated assertions are insufficient. The court
18 shall consider known inculpatory and exculpatory evidence.

19 (4) An ex parte order shall expire fourteen (14) calendar days from is-
20 suance, shall state on its face the date and time of expiration, and shall not
21 be extended or converted into a temporary order without a full evidentiary
22 hearing and written findings.

23 (5) A court shall not delay resolution of a custody matter such that a
24 temporary or ex parte order functions as a long-term deprivation of parental
25 rights.

26 SECTION 3. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.